

ORIGINAL

(S E R V E D)
(NOVEMBER 14, 2003)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

DOCKET NO. 03-13

BAX GLOBAL INC.

v.

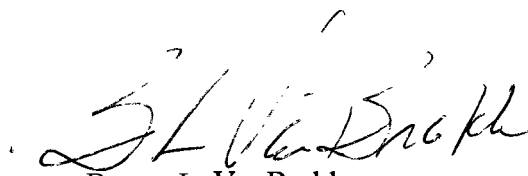
LYKES LINES LIMITED, LLC.

NOTICE OF FILING OF COMPLAINT AND ASSIGNMENT

Notice is given that a complaint has been filed with the Federal Maritime Commission (“Commission”) by BAX Global Inc. (“Complainant”) against Lykes Lines Limited, LLC (“Respondent”). Complainant contends that Respondent violated sections 1 O(b)(2)(A), 1 O(b)(4)(A), 10(b)(4)(E), and 10(d)(1) of the Shipping Act, 46 U.S.C. app. 1709, by: not providing service in accordance with its published tariff; engaging in unfair or unjustly discriminatory practices concerning rates or charges, and adjustment and settlement of claims; and failing to establish, observe and enforce just and reasonable regulations and practices. Specifically, Complainant alleges that Respondent violated the Shipping Act by collecting and refusing to refund demur-rage charges that accrued while Complainant’s cargo was detained by the U.S. Customs Service through no fault of the Complainant. Complainant requests that a hearing in this matter take place at the Complainant’s Irvine, CA offices, and seeks an order finding Respondent to have violated the sections cited above and such other and further order(s) as the Commission determines to be proper,

and awarding reparations for the unlawful conduct in the amount of \$98,885 plus interest, attorney fees or such other sum as the Commission may determine to be proper.

This proceeding has been assigned to the Office of Administrative Law Judges. Hearing in this matter, if any is held, shall commence within the time limitations prescribed in 46 C.F.R. 502.6 1, and only after consideration has been given by the parties and the presiding officer to the use of alternative forms of dispute resolution. The hearing shall include oral testimony and cross-examination in the discretion of the presiding officer only upon proper showing that there are genuine issues of material fact that cannot be resolved on the basis of sworn statements, affidavits, depositions, or other documents or that the nature of the matter in issue is such that an oral hearing and cross-examination are necessary for the development of an adequate record. Pursuant to the further terms of 46 C.F.R. 502.61, the initial decision of the presiding officer in this proceeding shall be issued by November 15, 2004 and the final decision of the Commission shall be issued by March 15, 2005.



Bryant L. VanBrakle
Secretary

are available from: Ms. Paula V. Batchelor, U.S. Environmental Protection Agency, Region 4, Superfund Enforcement & Information Management Branch, Waste Management Division, 61 Forsyth Street, SW., Atlanta, Georgia 30303, (404) 562-8887.

Written comment may be submitted to Greg Armstrong at the above address on or before December 22, 2003.

Dated. November 7, 2003

Anita Davis,

Acting Chief, Superfund Information & Management Branch, Waste Management Division.

[FR Doc 03-29003 Filed 11-19-03; 8:45 am]

BILLING CODE 6566-56-P

EQUAL EMPLOYMENT OPPORTUNITY COMMISSION

Sunshine Act Meeting

AGENCY HOLDING THE MEETING: Equal Employment Opportunity Commission.

DATE AND TIME: Tuesday, December 2, 2003, 9:30 a.m. Eastern Time.

PLACE: Clarence M. Mitchell Conference Room on the Ninth Floor of the EEOC Office Building, 1801 "L" Street, NW., Washington, DC 20507.

STATUS: The meeting will be open to the public.

MATTERS TO BE CONSIDERED:

OPEN SESSION:

1. Announcement of Notation Votes, and
2. Invited Panelists-Discussion of the EEOC Mediation Program and the Workplace Benefits of Mediation.

Note: Any matter not discussed or concluded may be carried over to a later meeting. (In addition to publishing notices on EEOC Commission meetings in the **Federal Register**, the Commission also provides a recorded announcement a full week in advance on future Commission sessions.

Please telephone (202) 663-7100 (voice) and (202) 663-4074 (TTD) at any time for information on these meetings.

FOR FURTHER INFORMATION CONTACT: Frances M. Hart, Executive Officer on (202) 663-4070.

Dated. November 18, 2003.

Frances M. Hart,

Executive Officer, Executive Secretariat

[FR Doc 03-29179 Filed 11-18-03; 12:19 pm]

BILLING CODE 6756-66-M

FEDERAL MARITIME COMMISSION

[Docket No. 03-13]

BAX Global Inc. v. Lykes Lines Limited, LLC.; Notice of Filing of Complaint and Assignment

Notice is given that a complaint has been filed with the Federal Maritime Commission ("Commission") by BAX Global Inc. ("Complainant") against Lykes Lines Limited, LLC ("Respondent"). Complainant contends that Respondent violated sections 10(b)(2)(A), 10(b)(4)(A), 10(b)(4)(E), and 10(d)(1) of the Shipping Act, 46 U.S.C. app. 1709, by: not providing service in accordance with its published tariff; engaging in unfair or unjustly discriminatory practices concerning rates or charges, and adjustment and settlement of claims; and failing to establish, observe and enforce just and reasonable regulations and practices. Specifically, Complainant alleges that Respondent violated the Shipping Act by collecting and refusing to refund demurrage charges that accrued while Complainant's cargo was detained by the U.S. Customs Service through no fault of the Complainant. Complainant requests that a hearing in this matter take place at the Complainant's Irvine, CA offices, and seeks an order finding Respondent to have violated the sections cited above and such other and further order(s) as the Commission determines to be proper, and awarding reparations for the unlawful conduct in the amount of \$98,885 plus interest, attorney fees or such other sum at the Commission may determine to be proper.

This proceeding has been assigned to the Office of Administrative Law Judges. Hearing in this manner, if any is held, shall commence within the time limitations prescribed in 46 CFR 502.61, and only after consideration has been given by the parties and the presiding officer to the use of alternative forms of dispute resolution. The hearing shall include oral testimony and cross-examination in the discretion of the presiding officer only upon proper showing that there are genuine issues of material fact that cannot be resolved on the basis of sworn statements, affidavits, depositions, or other documents or that the nature of the matter in issue is such that an oral hearing and cross-examination are necessary for the development of an adequate record. Pursuant to the further terms of 46 CFR 502.61, the initial decision of the presiding officer in this proceeding shall be issued by November 15, 2004 and the

final decision of the Commission shall be issued by March 15, 2005.

Bryant L. VanBrakle,

Secretary

[FR Doc. 03-28951 Filed 11-19-03, 8 45 am]

BILLING CODE 6730-01-M

FEDERAL RESERVE SYSTEM

Change in Bank Control Notices: Acquisition of Shares of Bank or Bank Holding Companies

The notificants listed below have applied under the Change in Bank Control Act (12 U.S.C. 1817(j)) and § 225.41 of the Board's Regulation Y (12 CFR 225.41) to acquire a bank or bank holding company. The factors that are considered in acting on the notices are set forth in paragraph 7 of the Act (12 U.S.C. 1817(j)(7)).

The notices are available for immediate inspection at the Federal Reserve Bank indicated. The notices also will be available for inspection at the office of the Board of Governors. Interested persons may express their views in writing to the Reserve Bank indicated for that notice or to the offices of the Board of Governors. Comments must be received not later than December 4, 2003.

A. Federal Reserve Bank of Boston (Richard Walker, Community Affairs Officer) 600 Atlantic Avenue, Boston, Massachusetts 02106-2204.

1. **Kenneth R. Lehman and Joan Abercrombie Lehman**, Medway, Massachusetts; to acquire voting shares of Service Bancorp, Inc., Medway, Massachusetts, and thereby indirectly acquire voting shares of Strata Bank, Medway, Massachusetts.

B. Federal Reserve Bank of Chicago (Phillip Jackson, Applications Officer) 230 South LaSalle Street, Chicago, Illinois 60690-1414:

1. **Randall E Vail**, Lake Mills, Wisconsin; to acquire additional voting shares of The Greenwood's Bancorporation, Inc. Lake Mills, Wisconsin, and thereby indirectly acquire additional voting shares of The Greenwood's State Bank, Lake Mills, Wisconsin.

2. **Raymond Abel**, Mediapolis, Iowa, to retain control of Mediapolis Bancorporation, Mediapolis, Iowa, and thereby indirectly retain voting shares of Mediapolis Savings Bank, Mediapolis, Iowa.

3. **Kenneth and Shirley Aspelmeier**, Mediapolis, Iowa, together and with Lynne McBridge of Waterloo, Iowa, David Aspelmeier, Case Aspelmeier, and Samuel Aspelmeier, all of West